

The Goa, Daman and Diu (Laws) Regulation, 1962

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State of Goa - Act

The Goa, Daman and Diu (Laws) Regulation, 1962

GOA

India

The Goa, Daman and Diu (Laws) Regulation, 1962

Act 12 of 1962

Published on 1 November 1956

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The Goa, Daman and Diu (Laws) Regulation, 1962

Act

No. 12 of 1962

Promulgated by the President in the Thirteenth Year of the Republic of India.

A Regulation to extend certain laws to the Union territory of Goa, Daman and Diu.

In exercise of the powers conferred by article 240 of the Constitution, the President is pleased to promulgate the following Regulation made by him:-

1.

Short title and commencement.

(1)

This regulation may be called the Goa, Daman and Diu (Laws) Regulation, 1962.

(2)

It shall come into force at once.

2.

Definitions.

- In this Regulation, unless the context otherwise requires,-

(a)

"Act" means an Act or the Ordinance specified in the Schedule;

(b)

"Goa, Daman and Diu" means the Union territory of Goa, Daman and Diu;

(c)

"Lieutenant-Governor" means the Administrator of Goa, Daman and Diu.

3.

Extension with amendments of certain laws to Goa, Daman and Diu and their commencement therein.

(1)

The Acts, as they are generally in force in the territories to which they extend, shall extend to Goa, Daman and Diu, subject to the modifications, if any, specified in the Schedule.

(2)

Notwithstanding anything contained in sub-section (1) or in the relevant provision, if any, of each such Act for the commencement thereof, the provisions of each such Act shall come into force in Goa, Daman and Diu on such date as the Lieutenant-Governor may, by notification in the Goa, Daman and Diu Gazette, appoint:

Provided that different dates may be appointed for different provisions of any Act and for different areas and any reference in any such provision to the commencement of the Act shall be construed as a reference to the coming into force of that provision in the area where it has been brought into force.

4.

Repeal and saving.

(1)

Any law in force in Goa, Daman and Diu or any area thereof corresponding to any Act referred to in section 3 or any part thereof shall stand repealed as from the coming into force of such Act or part in Goa, Daman and Diu or such area, as the case may be.

(2)

Nothing in sub-section (1) shall affect-

(a)

the previous operation of any law so repealed or anything duly done or suffered thereunder; or

(b)

any right, privilege, obligation or liability acquired, accrued or incurred under any law so repealed; or

(c)

any penalty, forfeiture or punishment incurred in respect of any offence committed against any law so repealed; or

(d)

any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid,

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if this Regulation had not been made:

Provided that anything done or any action taken (including any appointment or delegation made, notification, instruction or direction issued, form, bye-law or scheme framed, certificate obtained, patent permit or licence granted, or registration effected) under any such law, shall be deemed to have been done or taken under the corresponding provision of the Act extended to Goa, Daman and Diu and shall continue to be in force accordingly unless and until superseded by anything done or any action taken under the said Act.

5.

Extension of rules, orders, etc., under certain laws.

(1)

All rules, notifications, orders, regulations and bye-laws made or issued by the Central Government under the provisions

of any Act generally for the territories to which such Act extends shall, as from the commencement of the provisions of such Act in Goa, Daman and Diu, extend to, and come into force in Goa, Daman and Diu.

(2)

Notwithstanding anything contained in sub-section (1), no rules, notifications, orders, regulations and bye-laws made or issued by the Central Government under the following acts, namely:-

(i)

The Indian Explosives Act, 1884,
4 of 1884.

(ii)

The Petroleum Act, 1934,
30 of 1934.

(iii)

The Imports and Exports (Control) Act, 1947,
18 of 1947.

(iv)

The Inflammable Substances Act, 1952,
20 of 1952.

(v)

The Essential Commodities Act, 1955,
10 of 1955.

shall extend to, and come into force in Goa, Daman and Diu unless the Central Government, by notification in the Official Gazette, otherwise directs.

6.

Rules of construction.

(1)

In any Act or in any of the rules, notifications, orders, regulations and bye-laws made or issued thereunder and extended to Goa, Daman and Diu by this Regulation,-

(a)

any reference to any provision of law not in force, or to any functionary not in existence, in Goa, Daman and Diu shall be construed as a reference to the corresponding law in force, or to the corresponding functionary in existence, in that Union territory:

Provided that-

(i)

if any question arises as to who such corresponding functionary is, or

(ii)

if there is no such corresponding functionary, the Lieutenant-Governor shall decide as to who such functionary will be and his decision shall be final;

(b)

any reference to the State Government shall be construed as a reference to the Central Government and also as including a reference to the Lieutenant-Governor;

(c)

until the Code of Criminal Procedure, 1898, is brought into force in that Union territory and Magistrates are appointed thereunder, any reference to a Magistrate shall be construed as a reference to the District Judge; and

(d)

any reference to the High Court shall, until the jurisdiction of the High Court at Bombay is extended to that Union territory, be construed as a reference to the High Court functioning therein immediately before the commencement of this Regulation.

(2)

For the purpose of facilitating the application in relation to Goa, Daman and Diu of any Act or any rule, notification, order, regulation or bye-law made or issued thereunder, any court or other authority may construe it in such manner not affecting the substance, as may be necessary or proper to adapt it to the matter before the court or other authority.

7.

Trial of offences.

- Until the relevant provisions of the Code of Criminal Procedure, 1898, are brought into force in Goa, Daman and Diu, all offences under any Act shall be investigated, inquired into, tried and otherwise dealt with according to the provisions of the corresponding law in force in Goa, Daman and Diu.

8.

Power to remove difficulties.

- If any difficulty arises in giving effect in Goa, Daman and Diu to the provisions of any Act extended by this Regulation to that Union territory, the Central Government may, by order in the Official Gazette, make such provisions or give such directions as appear to it to be necessary for the removal of the difficulty

The Schedule

(See section 2)

Year

No.

Short title

Modifications

1

2

3

4

1838

19

The Coasting-Vessels Act, 1838.

1857

13

The Opium Act, 1857.

1860

21

The Societies Registration Act, 1860.

1860

45

The Indian Penal Code.

1861

5

The Police Act, 1861.

1867

25

The Press and Registration of Books Act, 1867.

1878

1

The Opium Act, 1878.

1878

8

The Sea Customs Act, 1878.

1881

16

The Obstructions in Fairways Act, 1881.

After the words, figures and letters "in the territories which, immediately before the 1st November, 1956, were comprised in Part A States and Part C States" wherever they occur, insert "or in the Union territory of Goa, Daman and Diu".

1881

26

The Negotiable Instruments Act, 1881.

1883

19

The Land Improvement Loans Act, 1883.

1884

4

The Indian Explosives Act, 1884.

1884

12

The Agriculturists' Loans Act, 1884.

1888

3

The Police Act, 1888.

1890

1

The Revenue Recovery Act, 1890.

1890

9

The Indian Railways Act, 1890.

1897

4

The Indian Fisheries Act, 1897.

1897

10

The General Clauses Act, 1897.

1898

5

The Code of Criminal Procedure, 1898.

1898

9

The Live-stock Importation Act, 1898.

1903

7

The Indian Works of Defence Act, 1903.

1905

4

The Indian Railway Board Act, 1905.

1908

6

The Explosive Substances Act, 1908.

1908

15

The Indian Ports Act, 1908.

1910

9

The Indian Electricity Act, 1910.

1911

2

The Indian Patents and Designs Act, 1911.

1917

1

The Inland Steam-vessels Act, 1917.

1917

5

The Destruction of Records Act, 1917.

1920

15

The Indian Red Cross Society Act, 1920.

1920

34

The Indian Passport Act, 1920.

1922

7

The Indian Emigration Act, 1922.

1922

22

The Police (Incitement to Disaffection) Act, 1922.

1923

5

The Indian Boilers Act, 1923.

1923

8

The Workmen's Compensation Act, 1923.

1923

19

The Indian Official Secrets Act, 1923.

1924

4

The Central Board of Revenue Act, 1924.

1925

19

The Provident Funds Act, 1925.

1925

26

The Indian Carriage of Goods by Sea Act, 1925.

1926

16

The Indian Trade Unions Act, 1926.

1927

17

The Indian Lighthouse Act, 1927.

1930

2

The Dangerous Drugs Act, 1930.

1931

16

The Provisional Collection of Taxes Act, 1931.

1934

22

The Aircraft Act, 1934.

1934

30

The Petroleum Act, 1934.

1934

32

The Indian Tariff Act, 1934.

1936

4

The Payment of Wages Act, 1936.

1938

4

The Insurance Act, 1938.

In section 118, clause (d), add at the end: ";

or

(iv) any fund in existence in the Union territory of Goa, Daman and Diu on the 20th December, 1961 and maintained by or on behalf of Government servants or Government pensioners or on behalf of employees of any autonomous body and intended for the mutual benefit of contributors to the fund or for any other purpose".

1938

5

The Manoeuvres, Field Firing and Artillery Practice Act, 1938.

1939

4

The Motor Vehicle Act, 1939.

In the Sixth Schedule, after the entry relating to the Laccadive, Minicoy and Amindivi Islands, insert:

"Goa, Daman and Diu GDD."

1939

16

The Registration of Foreigners Act, 1939.

1941

11

The Essential Services Maintenance Ordinance, 1941.

1942

6

The Multi-Unit Co-operative Societies Act, 1942.

1944

1

The Central Excises and Salt Act, 1944.

1944

18

The Public Debt Act, 1944.

1946

20

The Industrial Employment (Standing Orders) Act, 1946.

1946

25

The Delhi Special Police Establishment Act, 1946.

1946

31

The Foreigners Act, 1946.

1947

2

The Prevention of Corruption Act, 1947.

1947

7

The Foreign Exchange Regulation Act, 1947.

1947

14

The Industrial Disputes Act, 1947.

1947

15

The Armed Forces (Emergency Duties) Act, 1947.

1947

18

The Imports and Exports (Control) Act, 1947.

1947

29

The Capital Issues (Control) Act, 1947.

1947

31

The Antiquities (Export Control) Act, 1947.

1948

15

The Industrial Finance Corporation Act, 1948.

1948

31

The National Cadet Corps Act, 1948.

1948

56

The Territorial Army Act, 1948.

1949

8

The Seaward Artillery Practice Act, 1949.

1950

12

The Emblems and Names (Prevention of Improper Use) Act, 1950.

1950

40

The Army and Air Force (Disposal of Private Property) Act,

1950.

1950

45

The Air Force Act, 1950.

1950

46

The Army Act, 1950.

1950

49

The Contingency Fund of India Act, 1950.

1951

65

The Industries (Development and Regulation) Act, 1951.

1952

20

The Inflammable Substances Act, 1952.

1952

35

The Mines Act, 1952.

1952

53

The Notaries Act, 1952.

1952

60

The Commissions of Inquiry Act, 1952.

1953

27

The Air Corporations Act, 1953.

1954

27

The Delivery of Books and Newspapers (Public Libraries) Act,

1954.

1955

10

The Essential Commodities Act, 1955.

1955

16

The Medicinal and Toilet Preparations (Excise Duties) Act,

1955.

1955

22

The Untouchability (Offences) Act, 1955.

1955

51

The Railway Stores (Unlawful Possession) Act, 1955.

1956

1

The Companies Act, 1956.

(i) After section 2, insert:

'2A. Construction of certain

references in the application of Act to Goa, Daman and Diu.-

In the application of this Act to the Union territory of Goa,

Daman and Diu. -

(a) the expression "commencement"

wherever it is used in relation to this Act as enacted in 1956 or

in relation to the Companies (Amendment) Act, 1960, means the

commencement of this Act in that Union territory;

(b) references to the dates

specified in sections 37 (1) and (2), 125 (1), 294 (3) (a), 295

(6) and 618, and the first proviso to section 284 (1) shall be construed as references to the commencement of this Act in that Union territory;

(c) reference to the 1st day of

December, 1949 in sub-section (4) of section 89 shall be construed as a reference to the 1st day of April, 1956;

(d) reference to the 15th day of

August, 1956 in sub-section (4) of section 325 shall be construed as a reference to the 31st day of March, 1963;

(e) references to the 15th day of

August, 1960 in section 330 and sub-section (1) of section 332 shall be construed as references to the date of expiry of two years from the commencement of this Act in that Union territory;

(f) reference to the 1st day of

March, 1958 in section 361 shall be construed as a reference to the 1st day of March, 1964.";

(ii) in section 3 (1) (ii), after

sub-clause (2) of clause (f) insert:

"or

(3) in the Union territory of Goa, Daman and Diu or any part thereof, before the commencement of this Act therein;".

1956

48

The National Highways Act, 1956.

1956

74

The Central Sales Tax Act, 1956.

1956

89

The Standards of Weights and Measures Act, 1956.

1957

14

The Copyright Act, 1957.

1957

23

The Railway Protection Force Act, 1957.

1957

58

The Additional Duties of Excise (Goods of Special Importance) Act, 1957.

1957

62

The Navy Act, 1957.

1957

67

The Mines and Minerals (Regulation and Development) Act, 1957.

In section 16, sub-section (1), and in section 30A, for

"granted before the 25th day of October, 1949"

substitute "granted in the Union territory of Goa, Daman and

Diu, before the commencement of this Act therein and elsewhere,

before the 25th day of October, 1949".

1958

21

The Rice Milling Industry (Regulation) Act, 1958.

1958

24

The Ancient Monuments and Archaeological Sites and Remains Act, 1958.

1958

27

The Mineral Oils (Additional Duties of Excise and Customs) Act, 1958.

1958

43

The Trade and Merchandise Marks Act, 1958.

1958

44

The Merchant Shipping Act, 1958.

1959

54

The Arms Act, 1959.

1960

60

The Children Act, 1960.

1961

23

The Criminal Law Amendment Act, 1961.

1961

47

The Deposit Insurance Corporation Act, 1961.

1859

24

The Madras District Police Act, 1859.

(i) In the long title, for the words "within the territories subject to the Presidency of Fort St. George", substitute "within the Union territory of Goa, Daman and Diu".

(ii) In the preamble and in section 8, for the words "Madras Presidency" substitute "Union territory of Goa, Daman and Diu".

(iii) Omit section 12.

(iv) In sections 42 and 43, for the words "Madras Fire Services", substitute "Fire Services in the Union territory of Goa, Daman and Diu".

(v) In section 43, omit "either" and "or under section 62-A of the Madras City Police Act, 1888".

(vi) Omit section 54A and the Schedule.

1924

IV

The Punjab Motor-Vehicles Taxation Act, 1924.

(i) In the long title, preamble,

section 1 (2) and section 15 (2) (c) for "Punjab"
substitute "the Union territory of Goa, Daman and Diu".

(ii) In section 3, sub-section (1),
for the words "at the rate specified in the Schedule to this
Act" substitute "at such rate, not exceeding the rate
specified in the Schedule to this Act, as the State Government
may by notification specify".

(iii) In section 4-

(a) in
sub-section (1), for "before the 30th day of April, 1925"
substitute "before the expiry of 30 days from the
commencement of this Act" and for "10th day of April,
1925" substitute "commencement of this Act".

(b) in the
proviso to sub-section (2), for "10th day of April, 1925"
substitute "commencement of this Act".

(iv) In section 12, for the words
"to the Commissioner" substitute "to such other
officer as the State Government may specify in this behalf"
and for the words "or Commissioner" substitute "or
the other officer so specified".

(v) In section 15, sub-section (2), clause (i) for "States"
substitute "Union territory".

1961

XXIV

The Maharashtra Co-operative Societies Act, 1960.

(i) Throughout the Act,-

(a) for the
words "State of Maharashtra" substitute "Union
territory of Goa, Daman and Diu";

(b) for the
word "State" (except where it occurs in the expression
"State Government" and except in Chapter V and section
159) substitute "Union territory";

(c) for the
words "Official Gazette" substitute "Goa, Daman
and Diu Gazette".

(ii) In section 2, in clause (30),
for the words "Maharashtra State Co- -operative Tribunal"
substitute "Goa, Daman and Diu Co- -operative Tribunal".

(iii) Omit sections 14 and 18.

(iv) in Chapter V, for the words
"State Government" wherever they occur, substitute
"Central Government".

(v) Omit section 101.

(vi) In section 111, omit clause
(m).

(vii) In section 149, in
sub-section (1), for the words "Maharashtra State
Co-operative Tribunal" substitute "Goa, Daman and Diu
Cooperative Tribunal".

(viii) In section 159,-

(a) in

sub-section (i) for the words "in any other State"

substitute "elsewhere in India";

(b) in

sub-section (2), for the words "in any other State"

substitute "elsewhere in India", for the words

"Maharashtra State" in the two places where they occur,

substitute "Union territory of Goa, Daman and Diu" and

for the words "Registrar of the State" substitute

"Registrar of the State or Union territory".

(ix) In section 165, omit

sub-section (4).

(x) Omit section 166.

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